



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

August 16, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20645
(FOURTH REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of lithium batteries with alternative hazard communication by ground and cargo vessel. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.159a(c)(2) in that the marking of “NON-SPILLABLE” on the battery and outer packaging is included on a single label on the outer packaging, § 173.185(c)(1)(iii) through (v) in that an alternative marking is authorized as prescribed herein, and § 173.185(c)(3) in that an alternative marking is authorized on the outer packaging.
5. BASIS: This special permit is based on the application of Walmart Inc. dated April 15, 2022, submitted in accordance with § 107.105, the public proceeding thereon.

Tracking Number: 2024054445

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A
Lithium ion batteries contained in equipment <i>including lithium ion polymer batteries</i>	9	UN3481	N/A
Lithium ion batteries packed with equipment <i>including lithium ion polymer batteries</i>	9	UN3481	N/A
Lithium metal batteries <i>including lithium alloy batteries</i>	9	UN3090	N/A
Lithium metal batteries contained in equipment <i>including lithium alloy batteries</i>	9	UN3091	N/A
Lithium metal batteries packed with equipment <i>including lithium alloy batteries</i>	9	UN3091	N/A
Batteries, wet, non-spillable, <i>electric storage</i>	8	UN2800	N/A

7. SAFETY CONTROL MEASURES:a. OPERATIONAL CONTROLS:

(1) Lithium cells or batteries, those contained in equipment, and those packed with equipment with a Watt-hour rating conforming to § 173.185(c)(1)(iv) may be transported via highway under the terms of this special permit. For transportation by cargo vessel, only lithium cells or batteries, those contained in equipment, and those packed with equipment with a Watt-hour rating conforming to § 173.185(c)(1)(i) or (ii) may be transported under the terms of this special permit. Non-spillable batteries are limited to 11 kg (25 pounds) or less net weight each.

(2) Cells or batteries that are leaking or liable to rapidly disassemble, dangerously react, produce a flame or a dangerous evolution of heat or a dangerous emission of toxic, corrosive or flammable gases or vapors under normal conditions of transport may not be transported under this special permit.

(3) The original unopened packaging shall be used for shipment of cells, batteries and the cells and batteries contained in or packed with equipment from the grantee's product warehouses to the grantee's retail locations and return shipments from the grantee's retail locations to the grantee's warehouses for return processing.

(4) This special permit does not authorize the transportation of packages being returned from consumers that contain lithium ion or lithium metal cells and batteries, including those contained in equipment.

(5) This special permit does not authorize the transportation of lithium ion or lithium metal cells and batteries, including those contained in equipment, identified as damaged, defective, or recalled. Lithium batteries identified as damaged, defective, or recalled must be shipped in accordance with § 173.185(f).

(6) Transportation by cargo vessel is only permitted when motor vehicle shipments are not possible. Transportation by ferry vessel is not permitted.

(7) Transportation via motor vehicle must be by private carriage or contract carriage dedicated to shipments of the grantee's products. This applies to the cargo vessel shipment to the extent possible.

b. TESTING: All lithium cells and batteries, lithium cells or batteries contained in equipment, and lithium cells or batteries packed with equipment must have originally met the requirements for testing in accordance with the UN Manual of Tests and Criteria authorized at the time of testing.

c. PACKAGING:

(1) INNER PACKAGING: Each cell or battery, each piece of equipment containing these cells or batteries, or each cell or battery packed with equipment must be in the original retail packaging provided by the manufacturers. The opened packages must meet the conditions in paragraph 7.a.(4) for return shipment.

(2) OUTER PACKAGING: The completed inner packages must be placed in either:

- (i) A non-DOT specification fiberboard box that has passed the drop test in accordance with § 173.185(c)(2); or
 - (ii) An Orbis FP2168 Breakpack Tote, as described in Walmart, Inc's application dated April 15, 2022, and on file with the Office of Hazardous Materials Safety that has passed the drop test in accordance with § 173.185(c)(2).
- (3) When using the fiberboard box each package must not exceed 30 kg (66 pounds) gross weight in accordance with § 173.185(c)(1)(vi). For the Breakpack Tote each package must not exceed 9 kg (19 lbs) gross weight.
- d. MARKING: Each package covered under the terms of this special permit must be durably and legibly marked and displayed on a background of contrasting color with the following:
 - (1) "DOT-SP 20645";
 - (2) The words "This package may contain Lithium Cells or Batteries under UN3480, U3481, UN 3090, and UN3091 and UN2800 Non-spillable Batteries";
 - (3) The words "FOR HIGHWAY OR CARGO VESSEL TRANSPORT ONLY – FORBIDDEN FOR TRANSPORT ABOARD AIRCRAFT"; and
 - (4) Phone numbers for additional information and emergency response.
- 8. SPECIAL PROVISIONS:
 - a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.
 - b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
- 10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

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